

Introduction to Index

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140CB	¶14-090 ; ¶24-327
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141(14)	¶22-083
141AA	¶26-480
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TAXATION (ANNUAL RATES FOR 2022–23, PLATFORM ECONOMY, AND REMEDIAL MATTERS) ACT 2023

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TAXATION PRINCIPLES REPORTING ACT 2023

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TAXATION REVIEW AUTHORITIES ACT 1994

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2025 — The year at a glance [¶1]

[¶1]

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LEGISLATION

Taxation (Annual Rates for 2024–25, Emergency Response, and Remedial Measures) Act 2025

[Taxation \(Annual Rates for 2024–25, Emergency Response, and Remedial Measures\) Act 2025](#) received the Royal assent on 29 March 2025.

Some of the main changes made by the Act include:

- # confirming the annual income tax rates for 2024–25 income year — see CCH, *New Zealand Tax Rates, Dates and Depreciation Rates 2026* (CCH, *Dep Rates 2026*)
- # introducing a generic set of tax relief for future emergency events, including:
 - # tax relief for employer's welfare contribution to employees ([¶5-715](#))
 - # fringe benefit tax (FBT) exemption for a benefit provided by an employer to an employee after an emergency event ([¶21-665](#))
 - # allowing the Commissioner to remit use of money interest (UOMI) following the declaration of an emergency event ([¶14-180](#))
 - # tax relief where access to depreciable property is denied due to an emergency event ([¶13-044](#))
 - # option to defer the recognition of depreciation recovery income in relation to depreciable property affected by an emergency event ([¶13-300](#))
 - # depreciation rollover relief for assets that are assessed as being uneconomic to repair due to an emergency event ([¶13-300](#))
 - # optional timing rule for assets damaged due to an emergency event but repairable ([¶13-300](#))
 - # cap on depreciation recovery income where insurance received for repairable assets ([¶13-300](#))
 - # optional adjustment to assets under thin-capitalisation rules after an emergency event ([¶13-300](#))
 - # rollover relief for land and building held on revenue account and turning off bright-line and other timing land disposal tests ([¶7-451](#))
 - # implementing the OECD's Crypto-Asset Reporting Framework ([¶26-280](#))
 - # increasing the exempt employee share scheme (ESS) thresholds ([¶3-471](#))
 - # allowing certain borrowers to retrospectively register a security for Approved Issuer Levy (AIL) in limited circumstances ([¶30-320](#))
 - # introducing a scheme pays option for transfers of overseas pension funds to certain New Zealand superannuation schemes ([¶29-200](#))
 - # clarifying the transfer pricing rules and the dividend rules apply concurrently ([¶26-608](#))
 - # extending the annual application due date for Research and Development Tax Incentive (RDTI) general approval applications ([¶11-150](#))
- # introducing a number of partnership remedials, including:
 - # clarifying that a limited partnership is treated as a company for the purposes of the associated persons tests in certain situations and the application of the limited partnership aggregation rules ([¶16-245](#))
 - # allowing certain limited partnerships to access the AIL regime ([¶30-310](#))
 - # allowing limited partnerships to apply for resident withholding tax (RWT)-exempt status at the partnership level ([¶15-160](#))
 - # allowing partners who are part of a partnership with a non-standard balance date to include their share of the partnership income in the same corresponding income year as the partnership when filing their separate return ([¶23-100](#))
 - # clarifying that the look-through company aggregation rules apply so that a person who is associated with an owner of an effective look-through interest is treated as being associated with a look-through company ([¶16-245](#))

- # introducing an option for certain suppliers of listed services to include flat-rate credit as assessable income ([¶132-640](#))
- # introducing an optional accounting rule for operators of electronic marketplaces, listing intermediaries and underlying suppliers to account for output tax on a supply of taxable accommodation ([¶132-640](#))
- # introducing an amendment to limit input tax deductions on arrangements when secondhand goods have been sold between several associated person before being sold by an unregistered supplier to an associated registered person ([¶132-686](#))
- # removing the requirement for a financial services supplier to notify Inland Revenue (IR) of their election to zero-rate business-to-business supplies of financial services ([¶132-310](#))
- # clarifying that income subject to the minor or corporate beneficiary rules is subject to a 39% tax rate ([¶125-080](#)).

Taxation (Budget Measures) Act 2025

The [Taxation \(Budget Measures\) Act 2025](#) received the Royal assent on 29 May 2025.

The changes made by the Act include:

- # introducing the new Investment Boost deduction for qualifying new investment assets ([¶110-945](#))
- # changing the KiwiSaver scheme settings, including:
 - # allowing a person aged under 16 to enroll in KiwiSaver in limited circumstances from 1 July 2025 ([¶129-215](#))
 - # decreasing the age of entitlement for the government contribution to 16 years of age from 1 July 2025 ([¶129-215](#))
 - # decreasing the government contribution to a maximum of \$260.72 per year and this is not available to members earning over \$180,000 from 1 July 2025 ([¶129-250](#))
 - # increasing the default rate of employee and employer KiwiSaver contribution from 3% to 3.5% from 1 April 2026 unless the employee applies for a temporary rate reduction ([¶129-230](#))
 - # increasing the default rate of employee and employer KiwiSaver contribution to 4% from 1 April 2028 unless the employee applies for a temporary rate reduction ([¶129-230](#))
 - # extending the income test to the first year of the Best Start tax credits ([¶112-165](#))
 - # increasing the Working for Families abatement threshold from \$42,700 to \$44,900 and increasing the Working for Families abatement rate from 27% to 27.5% from 1 April 2026 ([¶112-150](#) and [¶150-041](#)).

Income Tax (FamilyBoost) Amendment Act 2025

The Income Tax (FamilyBoost) Amendment Act 2025 received the Royal assent on 23 September 2025. The Act increases the percentage of early childhood education expenses claimable from 25% to 40%, raises the maximum quarterly payment from \$975 to \$1,560 and increases the maximum qualifying household income per quarter from \$45,000 to \$57,286 from 1 July 2025 ([¶111-200](#)).

Orders in Council

Below are some of the key orders made in 2025:

Tax Administration (FamilyBoost Tax Credit—Extension of Dates to File Return of Income) Order 2025

The [Tax Administration \(FamilyBoost Tax Credit—Extension of Dates to File Return of Income\) Order 2025](#) came into force on 26 February 2025 and allows FamilyBoost applicants who filed tax returns late, up to 26 February 2025, to access both FamilyBoost quarterly payments, once they have filed the tax return required for the quarter they are applying for. If a person to whom this order applies filed their last return of income after the date required by s [MH 3\(4\)](#) of the Income Tax Act 2007, and that date was before this order comes into force, the date is extended to 31 March 2025 for the purpose of the application for a refund. In practical terms, this order applies to:

- returns of income for the 2023–24 tax year that were filed late
- returns of income for the 2022–23 tax year that were filed late (if the person's 2023–24 return has not been filed, and is not late for filing).

Tax Administration (Reportable Jurisdictions for Application of CRS Standard) Amendment Regulations 2025

The Tax Administration (Reportable Jurisdictions for Application of CRS Standard) Amendment Regulations 2025 came into force on 31 March 2025 and adds Armenia, Jordan, Rwanda, Senegal, and Tunisia to New Zealand's existing list of 106 reportable jurisdictions under the Common Reporting Standard.

Income Tax (Fringe Benefit Tax, Interest on Loans) Amendment Regulations 2025

The Income Tax (Fringe Benefit Tax, Interest on Loans) Amendment Regulations 2025 decreases the FBT prescribed rate of interest for low-interest employment-related loans from 8.41% to 7.38% for the quarter beginning 1 April 2025. See CCH, *Dep Rates 2026*, ¶150-082.

Income Tax (Fringe Benefit Tax, Interest on Loans) Amendment Regulations (No 2) 2025

The Income Tax (Fringe Benefit Tax, Interest on Loans) Amendment Regulations (No 2) 2025 decreases the FBT prescribed rate of interest for low-interest employment-related loans from 7.38% to 6.67% for the quarter beginning 1 July 2025. See CCH, *Dep Rates 2026*, ¶150-082.

Income Tax (Fringe Benefit Tax, Interest on Loans) Amendment Regulations (No 3) 2025

The Income Tax (Fringe Benefit Tax, Interest on Loans) Amendment Regulations (No 3) 2025 decreases the FBT prescribed rate of interest for low-interest employment-related loans from 6.67% to 6.29% for the quarter beginning 1 October 2025. See CCH, *Dep Rates 2026*, ¶150-082.

Taxation (Use of Money Interest Rates) Amendment Regulations 2025

The Taxation (Use of Money Interest Rates) Amendment Regulations 2025 decreases the UOMI rates from 8 May 2025. See CCH, *Dep Rates 2026*, ¶150-083.

Taxation (Use of Money Interest Rates) Amendment Regulations (No 2) 2025

The Taxation (Use of Money Interest Rates) Amendment Regulations (No 2) 2025 decreases the UOMI rates from 16 January 2026. See CCH, *Dep Rates 2026*, ¶150-083.

Income Tax (Deemed Rate of Return on Attributing Interests in Foreign Investment Funds, 2024–25 Income Year) Order 2025

The [Income Tax \(Deemed Rate of Return on Attributing Interests in Foreign Investment Funds, 2024–25 Income Year\) Order 2025](#) came into force on 25 July 2025 and sets the deemed rate of return at 8.04% for calculating foreign investment fund (FIF) income for the 2024–25 income year under the deemed rate of return calculation method. See ¶126-130.

Tax Administration (Extension of Application Deadline for Research and Development Tax Credits) Order 2025

The [Tax Administration \(Extension of Application Deadline for Research and Development Tax Credits\) Order 2025](#) comes into force on 18 December 2025 and extends the due date for RDTI general approval for businesses with a September balance date for the 2024–25 income year to 15 January 2026. See ¶111-150.

Income Tax (Tax Credit) Order 2025

The [Income Tax \(Tax Credit\) Order 2025](#) comes into force on 1 April 2026. It increases the Best Start Tax Credit rate from \$3,838 to \$4,041 and the minimum family tax credit threshold from \$35,316 to \$36,604. See ¶112-160 and ¶112-165.

INTERPRETATION STATEMENTS

IR released the following interpretation statements in 2025:

IS 25/01

[IS 25/01](#), “Income Tax — deducting costs of travel by motor vehicle between home and work”, considers who can claim deductions for expenditure on travel by motor vehicle under specific deductibility rules for motor vehicle expenditure, and in what circumstances. It replaces [IS3448](#). See [¶10-710](#).

IS 25/02

[IS 25/02](#), “FBT — travel by motor vehicle between home and work”, considers when employer provided travel by motor vehicle is a fringe benefit and subject to FBT for travel between work and home. It replaces [IS3448](#). See [¶21-175](#).

IS 25/03

[IS 25/03](#), “Income tax — identifying the relevant item of property for depreciation purposes”, provides guidance on how to identify the relevant item of property when applying the depreciation rules. See [¶13-034](#).

IS 25/04

[IS 25/04](#), “What an employee share scheme is, the taxing date and apportionment”, explains the definition of ESS, the relevant exclusions, when the share scheme taxing date arises and when shares are held by or for the benefit of an employee. See [¶3-470](#).

IS 25/05

[IS 25/05](#), “GST treatment of fees paid in relation to managed funds”, addresses the GST treatment of fees received by a manager of a managed fund and fees received by third-party suppliers for supplies made to the manager of a managed fund. See [¶32-044](#).

IS 25/06

[IS 25/06](#), “Employer obligations for employee share scheme benefits paid in cash”, provides guidance on an employers’ PAYE, student loan and KiwiSaver obligations when an employee receives a benefit under an ESS that is paid in cash. See [¶3-470](#).

IS 25/07

[IS 25/07](#), “Employer obligations for employee share scheme benefits paid in cash”. This interpretation statement provides guidance on an employer’s withholding and reporting obligations when an employer chooses to fund the tax cost on an ESS benefit provided in shares. See [¶3-470](#).

IS 25/08

[IS 25/08](#), “Income tax — implications of a residential property moving between the standard tax rules and the mixed-use asset rules”, provides guidance when a person’s use of their residential property has changed so the property moves from being under one set of income tax deduction rules to another. See [¶10-037](#).

IS 25/09

[IS 25/09](#), “Tax treatment of losses on amalgamation”, provides guidance on how the provisions in subpart [IE](#) apply to the tax losses of an amalgamated company, amalgamating company or a non-amalgamating group company, that arise before amalgamation. See [¶20-120](#).

IS 25/10

[IS 25/10](#), “Income tax and GST — Amalgamations”, provides detailed guidance on the income tax and GST treatment of company amalgamations. See [¶20-090](#) and [¶20-135](#).

IS 25/11

[IS 25/11](#), “Income tax — Partnerships (including limited partnerships) — general guidance”, provides guidance on the income tax treatment of partnerships. See [¶23-010](#).

IS 25/12

[IS 25/12](#), “Income tax — Using the cost method to determine foreign investment fund (FIF) income”, explains when a New Zealand tax resident investor is able to apply the cost method to calculate their FIF income on shares held in foreign companies. See [¶26-130](#).

IS 25/13

[IS 25/13](#), “Income Tax and GST — forestry activities registered in the Emissions Trading Scheme”, sets out the income tax and GST treatment for forestry activities registered in the Emission Trading Scheme including the tax consequences of receiving, selling and surrendering emissions units (NZUs) and specific transactions involving NZUs. See [¶15-228](#) and [¶32-034](#).

IS 25/14

[IS 25/14](#), “Income tax — arrangements involving tax losses carried forward under the business continuity rules”, sets out the Commissioner’s view on the potential application of the specific anti-avoidance rules in ss [GB 3BA](#), [GB 3BAB](#) and [GB 3BAC](#) when a company carries a tax loss forward under the business continuity rules. See [¶18-035](#).

IS 25/16

[IS 25/16](#), “Tax residence”, explains the tax residence rules and covers the application of the rules for individuals, companies and trusts. See [¶1-120](#), [¶1-140](#) and [¶5-700](#).

IS 25/17

[IS 25/17](#), “Tax residence – government service rule”, provides detailed guidance on how the government service rules applies and further discusses the articles of double tax agreements that may need to be considered. See [¶1-120](#).

IS 25/18

[IS 25/18](#), “Income tax — Whether money or property received by New Zealand tax residents from overseas is income from a foreign trust”, discusses the tax treatment of amounts of money and property received by New Zealand residents from overseas, including by inheritance. See [¶25-360](#).

IS 25/19

[IS 25/19](#), “Income Tax — Whether an off-market share cancellation is made in lieu of the payment of a dividend”, discusses the factors to be taken into account in determining whether an off-market cancellation of shares is made in lieu of the payment of a dividend. See [¶16-705](#).

IS 25/20

[IS 25/20](#), “Student Loans — Overseas borrowers and their obligations”, outlines when a borrower will be a New Zealand based borrower and when they will be an overseas-based borrower. See [¶8-030](#).

IS 25/21

[IS 25/21](#), “GST — taxable activity”, sets out the Commissioner’s view on the meaning of ‘taxable activity’ under s 6 of the Goods and Services Tax Act 1985 and provides general guidance in determining GST obligations under ss [8](#) and [51](#). See [¶32-024](#).

IS 25/22

[IS 25/22](#), “GST — Secondhand goods input tax deduction”, explains the requirements that must be met for a registered person to claim a secondhand goods input tax deduction. See [¶32-686](#).

IS 25/23

[IS 25/23](#), “GST — Meaning of payment”, clarifies the Commissioner’s view on the meaning of “payment” for GST purposes. See [¶32-025](#).

IS 25/24

[IS 25/24](#), “Income tax and GST — industries other than forestry registered in the Emissions Trading Scheme”, provides guidance on the income tax and GST treatment of NZUs for industries (other than the forestry industry which is taxed differently) registered in the Emissions Trading Scheme. See [¶5-228](#) and [¶32-034](#).

IS 25/25

[IS 25/25](#), “Income tax — business activity”, explains whether and when a taxpayer is carrying on a “business” for income tax purposes. See [¶5-172](#).

IS 25/26

[IS 25/26](#), “The Commissioner’s duty of care and management — section 6A of the Tax Administration Act 1994” clarifies the Commissioner’s view on his “care and management” duty under s [6A](#) of the Tax Administration Act 1994 (TAA). See [¶4-118](#).

QUESTIONS WE’VE BEEN ASKED

IR released the following “questions we’ve been asked” in 2025:

QB 25/01

[QB 25/01](#), “Income tax — Which rules apply if I rent out my home, part of my home, or a separate dwelling on my property as short-stay accommodation?”, sets out how the income tax rules apply if a taxpayer occasionally rents out their home, a room in their home, or a separate dwelling on the property for short stays. See [¶5-232](#) and [¶10-113](#).

QB 25/02

[QB 25/02](#), “Income tax — Which rules apply if I have a dwelling I sometimes rent out as short-stay accommodation and also sometimes use privately?”, explains which income tax rules apply to a dwelling that a taxpayer sometimes rents out as short-stay accommodation and also sometimes uses privately. See [¶5-232](#), [¶10-035](#) and [¶10-113](#).

QB 25/03

[QB 25/03](#), “Income tax — How do the mixed-use asset rules apply if I provide short-stay accommodation?”. This question we’ve been asked sets out how the mixed-use asset rules apply to a dwelling that a taxpayer sometimes rents out as short-stay accommodation and also sometimes uses privately. See [¶5-232](#), [¶10-035](#) and [¶10-113](#).

QB 25/04

[QB 25/04](#), “Income tax — How do the standard tax rules apply if I provide short-stay accommodation?”, explains how the standard tax rules apply to a dwelling that a taxpayer sometimes rents out as short-stay accommodation and also sometimes uses privately. See [¶5-232](#) and [¶10-113](#).

QB 25/05

[QB 25/05](#), “Income tax — If property held in a trust is rented out for short-stay accommodation, who declares the income and what deductions can be claimed?”, sets out how the income tax rules apply if property held in a trust is rented out as short-stay accommodation. See [¶5-232](#) and [¶25-285](#).

QB 25/06

[QB 25/06](#), “How does an amalgamated company calculate its available subscribed capital following an amalgamation?”, provides detailed guidance on how an amalgamated company calculates its available subscribed capital. See [¶16-760](#).

QB 25/07

[QB 25/07](#), “What is the income tax treatment of gift cards and products provided as trade rebates or promotions?”, explains the income tax treatment for trade rebate arrangements between businesses where trade suppliers provide products or gift cards to their trade customers. See [¶21-430](#).

QB 25/08

[QB 25/08](#), “When is land acquired for a purpose or with an intention of disposal so that the amount derived from the sale is income?”, provides guidance on how s [CB 6](#) applies and its relationship with the 2-year bright-line test. See [¶7-045](#).

QB 25/09

[QB 25/09](#), “When do I have a “regular pattern” of transactions that prevents me from using exclusions from the land sale rules for my residence or for my main home?” explains when someone is considered to have a “regular pattern” of transactions that prevents them from using the residential exclusion from s [CB 6](#), as well as when someone will have a “regular pattern” of transactions that prevents them from using the main home exclusion from the 2-year bright-line test. See [¶7-211](#) and [¶7-215](#).

QB 25/10

[QB 25/10](#), “On what date is a person treated as acquiring land for the purposes of the land sale rules?”, provides guidance on when a person acquires land for the purposes of the land sale rules. See [¶7-047](#).

QB 25/11

[QB 25/11](#), “When is the bright-line start date for the 2-year bright-line test?”, explains the bright-line start date for the purposes of working out whether residential land is potentially subject to the 2-year bright-line test. See [¶7-049](#).

QB 25/12

[QB 25/12](#), “How does the bright-line test apply to the sale of a subdivided section?”, explains how to work out whether a section subdivided from residential land and sold within 2 years can be excluded from the bright-line test. See [¶7-215](#).

QB 25/13

[QB 25/13](#), “When is the sale of a lifestyle block excluded from the bright-line test?”, explains how to work out whether a lifestyle block sold within 2 years can be excluded from the bright-line test. See [¶7-215](#).

QB 25/14

[QB 25/14](#), “When does the business premises exclusion to the bright-line test apply?”, explains the business premises exclusion which applies for the purposes of the bright-line test. See [¶7-049](#).

QB 25/15

[QB 25/15](#), “How do the bright-line rollover relief provisions apply to transfers of residential land between associated persons?”, provides guidance on how the bright-line test and the rollover relief provisions apply to transfers of residential land between associated persons on or after 1 July 2024. See [¶7-545](#).

QB 25/16

[QB 25/16](#), “Income tax — How do the income tax rules apply when a close company provides short-stay accommodation?”, sets out how the income tax rules apply if property held in a close company is rented out as short-stay accommodation. See [¶5-232](#) and [¶10-113](#).

QB 25/17

[QB 25/17](#), “Income tax: Can I claim a deduction for expenses I incur on repairing a recently acquired capital asset?”, considers whether a taxpayer can claim a deduction on the amount of expenditure incurred to repair a capital asset that they have recently acquired. See [¶10-840](#).

QB 25/18

[QB 25/18](#), “Does GST apply to a deposit the seller retains in a cancelled land sale agreement”, explains the GST implications when a land sale agreement is cancelled and the seller retains the deposit. See [¶32-520](#).

QB 25/19

[QB 25/19](#), “GST listed services rules: When is a supply of listed services made through an electronic marketplace?”, explains when is a supply made “through” an electronic marketplace. See [¶32-640](#).

QB 25/20

[QB 25/20](#), “GST listed services rules: How do the rules apply when there is a supply of listed services and other goods or services?”, considers what listed services are and how to apply the GST listed services rules if a supply includes listed services with other goods or services. See [¶32-640](#).

QB 25/21

[QB 25/21](#), “Income tax — Public private partnership projects and business continuity test for losses”, considers whether a major change in the nature of the contractor’s business occurs when the project moves from the design and construction stage to an operational and maintenance phase. See [¶18-035](#).

QB 25/22

[QB 25/22](#), “Do the purchase price allocation rules alter the tax book values of Farmland Improvements and listed horticultural plants under subpart [DO](#)?”, confirms that the purchase price allocation rules do not override the tax treatment of farmland improvements and listed horticultural plants as specified under subpart [DO](#). See [¶33-200](#).

DETERMINATIONS

IR released the following determinations in 2025:

- # Determination [ITR36](#), “International tax disclosure exemption ITR36” was issued on 31 March 2025 and sets out the disclosure exemption for disclosing FIF and controlled foreign companies (CFC) interests for the 2025 income year. See [¶26-042](#) and [¶26-110](#).
- # Determination [DET 25/01](#), “GST on supplies through electronic marketplaces — hostel and motel opt-out agreement criteria” was issued on 14 March 2025 and sets out criteria for when a person who supplies accommodation through an electronic marketplace can enter into an opt-out agreement with the operator of an electronic marketplace. See [¶32-640](#).
- # Determination [DET 25/03](#), “Determination of amount of a particular payment (being per diem allowances paid in the screen production industry)” was issued on 11 June 2025 and applies to per diem allowances paid to contractors/entertainers working in the Screen Production Industry in New Zealand. See [¶3-457](#).
- # 2025 Consumers Price Index (CPI) Adjustment to standard-cost amounts for household services (childcare, boarding services, or short-stay accommodation). See [¶5-695](#).
- # [National Average Market Values of Specified Livestock Determination 2025](#) (NAMV 2025) which declared the national average market values for the 2025 income year and applied to specified livestock on hand at the end of the 2024–25 income year. See [¶27-264](#).
- # [National Standard Costs for Specified Livestock Determination 2025](#) (NSC 2025) which declares the national standard costs for specified livestock for the 2024-25 income year. See [¶27-267](#).

OPERATIONAL STATEMENT

IR released the following operational statement in 2025:

2025 CPI adjustment to [OS 19/03 \(CPI 2025\)](#), “Square metre rate for the dual use of premises”: containing an update to the square metre rate for the dual use of premises. See [¶10-530](#).

2025 adjustments to [OS 19/04 \(KM 2025\)](#), “Kilometre rates for the business use of vehicles for the 2025 income year”: containing the table of rates for the 2024-25 income year for motor vehicle expenditure claims. See CCH, *Dep Rates 2026*, [¶50-084](#).

[OS 25/01](#), “Cash collateral is “money lent”, explains a change in the Commissioner’s view that interest arising on cash collateral is subject to RWT or non-resident withholding tax. See [¶10-182](#).

[OS 25/02](#), “Valuation of livestock”, discusses IR’s view of the legislation and how taxpayers are expected to deal with certain practical issues from a tax perspective. Specifically, it sets out the options farmers have for valuing the livestock they have on hand at balance date. See [¶27-235](#).

[OS 25/03](#), “Authority to Act for Tax Agents, Representatives and Nominated Persons: Access to a Client’s Inland Revenue Information”, sets out how a tax agent, or a representative can obtain the authority to act from their clients and the process for a person to get another person to act for them in relation to their tax affairs and/or their social policy entitlements and obligations. See [¶2-018](#).

[OS 25/04](#), “The Commissioner of Inland Revenue’s search powers”, sets out the Commissioner’s procedure when exercising their search power under ss [17](#), [17C](#) and [17D](#) of the TAA and the Search and Surveillance Act 2012. See [¶1-590](#).

[OS 25/05](#), “Section 17B Notices”, sets out the Commissioner’s procedure when issuing notices under s [17B](#) of the TAA. See [¶1-590](#).

OPERATIONAL POSITION STATEMENT

IR released the following operational position statement in 2025:

OP 25/01

[OP 25/01](#), “Commissioner’s operational position on the GST treatment of fees paid in relation to managed fund”, outlines the Commissioner’s operational position on the adoption of [IS 25/05](#) (discussed above). See [¶32-044](#).

OP 25/02

[OP 25/02](#), “Commissioner’s operational position on the FBT treatment of open loop cards provided by employers to employees”, outlines the Commissioner’s view on the timing of taxpayers’ implementation of the position outlined in [QB 25/07](#) (discussed above). See [¶21-430](#).

GENERAL ARTICLE

IR released the following general article in 2025:

[GA 25/01](#), “Tax on any fees paid to a member of a board, committee, panel, review group or task force”, which is prepared specifically in relation to the fees paid to a member of a board, committee, panel, review group or task force under the Cabinet Fees Framework published by the Cabinet Office. See [¶3-280](#).

ISSUES PAPER

IR released the following issues papers in 2025:

- # “Improving taxation of loans made by companies to shareholders”, which discusses IR’s concerns with the current tax rules for taxing shareholder loans and proposes a new time limit rule which would treat certain shareholder loans as dividends if they were not repaid within 12 months from the end of the income year they were made.
- # “Income tax treatment of software development expenditure and SaaS customisation and configuration costs”, which discusses the current problems or uncertainties associated with software development costs. Particularly focusing on the following 2 circumstances:
 - # a software business’s costs in developing software that will be sold or licensed to customers
 - # software configuration or customisation costs incurred by a taxpayer licensed to use a software as a service (SaaS) application owned by a third party.
- # “Thin capitalisation settings for infrastructure”, which considers whether New Zealand’s thin capitalisation settings might be discouraging foreign investors from investing in infrastructure projects in New Zealand and proposes 2 possible solutions to address the potential issue.
- # “Fringe benefit tax — options for change”, which proposes a number of significant changes to the FBT regime with the aim to simplify the FBT rules and reduce compliance costs for taxpayers.
- # “Taxation and the not-for-profit sector”, which considers whether certain tax concessions for charities and not-for-profits continue to be effective and explores whether tax obligations can be simplified and compliance costs minimised.

IR has invited submissions on proposals in the above documents and will use the feedback from the consultations to refine their policy proposals which will then be submitted to the government for consideration.

Last reviewed on 31 December 2025